

25SMCV00481 25SMCV00481

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court is sure it is misunderstanding the nature of this motion. According to the defense, the defendant has been trying to conduct a vehicle inspection of plaintiff's vehicle. The original demand was served on October 28, 2025, for an inspection on November 29, 2025. But defendant told plaintiff that defendant would be amenable to a different date if plaintiff suggested one. Since then, despite repeated attempts to get an agreed upon date, plaintiff has not provided a date nor shown up at the inspection dates set by the defense. The trial is currently less than 3 months away. Surely defendant missed a communication of some sort where plaintiff had suggested a timely date. But if not, then the court believes defendant has a point. If that is the case, then the court would be inclined to GRANT the application and VACATE the FSC and trial dates. The court will set a TSC for November or December of this year, and the trial will likely be in the summer or fall of next year. The court notes that this behavior seems to be a pattern with plaintiff, which suggests that perhaps plaintiff is not serious about pursuing the litigation.